

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

JUDGE BATTS

DONNELL TAYLOR,

Plaintiff,

-against-

CITY OF NEW YORK, and JOHN and JANE DOE 1 through 10,
individually and in their official capacities, (the names John and
Jane Doe being fictitious, as the true names are presently unknown),

Defendants,

COMPLAINT

Index No.

Jury Trial Demanded

MAY 29 2007

Plaintiff DONNELL TAYLOR, by his attorneys, Leventhal & Klein, LLP, complaining
of the defendants, respectfully alleges as follows:

Preliminary Statement

1. Plaintiff brings action for compensatory damages, punitive damages and
~~attorney's fees pursuant to 42 U.S.C. §§ 1983 and 1988 for violations of his civil rights, as said~~
rights are secured by said statutes and the Constitution of the States of New York and the United
States. Plaintiff also asserts supplemental state law claims.

JURISDICTION

2. The action is brought pursuant to 42 U.S.C. §§ 1983 and 1988, and the First,
Fourth and Fourteenth Amendments to the United States Constitution.

3. Jurisdiction is found upon 28 U.S.C. §§ 1331, 1343 and 1367.

VENUE

4. Venue is properly laid in the Southern District of New York under U.S.C. §
1391(b), in that it is the District in which the claim arose.

defendants while acting in furtherance of their employment by defendant CITY OF NEW YORK.

FACTS

13. On March 11, 2006, at approximately 6:30 p.m., plaintiff DONNELL TAYLOR was lawfully in the vicinity of 7th Avenue and 143rd Street, in the County and State of New York.

14. At the aforesaid time and place, the defendants, members of the New York City Police Department, were in the process of interrogating and arresting the plaintiff's brother. When the plaintiff lawfully asked the officers why they were arresting his brother, he was directed to get up against a wall, and was thereafter roughly taken to the ground by one of the defendants, and felt the defendants punching him. Plaintiff was thereafter detained and arrested for Resisting Arrest and Disorderly Conduct. The charges, which were maliciously issued by the defendants to cover up their acts of brutality and abuse of authority, and were conveyed to the New York County District Attorney's Office for the purpose of initiating a prosecution against the plaintiff. Plaintiff was detained overnight until he was released without bail on March 12, 2006. However, plaintiff was forced to defend the baseless charges until they were ultimately dismissed and sealed on or about November 18, 2006.

15. As a result of the above, plaintiff was taken to Harlem Hospital by the defendants, where he was treated for the injuries inflicted by the defendants.

16. As a result of the foregoing, plaintiff DONNELL TAYLOR sustained, *inter alia*, physical injuries, emotional distress, embarrassment, and humiliation, and deprivation of his constitutional rights.

paragraphs numbered "1" through "22" with the same force and effect as if fully set forth herein.

24. The level of force employed by defendants was objectively unreasonable and in violation of plaintiff DONNELL TAYLOR'S constitutional rights.

25. As a result of the aforementioned conduct of defendants, plaintiff DONNELL TAYLOR was subjected to excessive force and sustained physical injuries.

AS AND FOR A THIRD CAUSE OF ACTION

(Failure to Intervene under 42 U.S.C. § 1983)

26. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "25" with the same force and effect as if fully set forth herein.

27. Defendants had an affirmative duty to intervene on behalf of plaintiff DONNELL TAYLOR, whose constitutional rights were being violated in their presence by other officers.

28. The defendants failed to intervene to prevent the unlawful conduct described herein.

29. As a result of the foregoing, plaintiff DONNELL TAYLOR'S liberty was restricted for an extended period of time, he was put in fear of his safety, he was strip searched, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause. Further, plaintiff sustained physical injuries.

AS AND FOR A FOURTH CAUSE OF ACTION

(False Arrest under 42 U.S.C. § 1983)

30. Plaintiff repeats, reiterate and realleges each and every allegation contained in paragraphs numbered "1" through "29" with the same force and effect as if fully set forth herein.

31. The defendants unlawfully imprisoned plaintiff DONNELL TAYLOR against his will without any probable cause or privilege.

32. As a result of the foregoing, plaintiff DONNELL TAYLOR was deprived of his

paragraphs numbered "1" through "38" with the same force and effect as if fully set forth herein.

40. The acts of the defendants were in retaliation for plaintiff's exercise of his free speech, and not in response to any unlawful acts of the plaintiff.

41. As a result of the aforementioned conduct of defendants, plaintiff DONNELL TAYLOR's First Amendment Rights were violated.

AS AND FOR AN EIGHTH CAUSE OF ACTION
(Municipal Liability under 42 U.S.C. § 1983)

42. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "41" with the same force and effect as if fully set forth herein.

43. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

44. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York Police Department included, but were not limited to, unlawfully stopping,

assaulting and battering, and seizing innocent citizens who question police misconduct, and then committing perjury and/or manufacturing evidence in an effort to convict such individuals. In addition, the City of New York engaged in a policy, custom or practice of inadequate screening, hiring, retaining, training and supervising its employees that was the moving force behind the violation of plaintiff DONNELL TAYLOR'S rights as described herein. As a result of the failure of the City of New York to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant CITY OF NEW YORK has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

D. To be free from the use of excessive force and/or the failure to intervene.

51. As a result of the foregoing, plaintiff DONNELL TAYLOR is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury.

Supplemental State Law Claims

52. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "51" with the same force and effect as if fully set forth herein.

53. Within ninety (90) days after the claim herein accrued, plaintiff duly served upon, presented to and filed with the City of New York, a Notice of Claim setting forth all facts and information required under the General Municipal Law 50-e.

54. The City of New York has wholly neglected or refused to make an adjustment or payment thereof and more than thirty (30) days have elapsed since the presentation of such claim as aforesaid.

~~55. The action was commenced within one (1) year and ninety (90) days after the cause of action herein accrued.~~

56. Plaintiff has complained with all conditions precedent to maintaining the instant action.

57. Their action falls within one or more of the exceptions as outlined in C.P.L.R. 1602.

AS AND FOR A NINTH CAUSE OF ACTION
(Assault under the laws of the State of New York)

58. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "57" with the same force and effect as if fully set forth herein.

68. The aforementioned conduct was intentional and for the sole purpose of causing severe emotional distress to plaintiff DONNELL TAYLOR.

69. As a result of the aforementioned conduct, plaintiff DONNELL TAYLOR suffered severe emotional distress, physical and mental injury, together with embarrassment, humiliation, shock, fright, and loss of freedom.

AS AND FOR THE TWELFTH CAUSE OF ACTION
(False Arrest under the laws of the State of New York)

70. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "69" with the same force and effect as if fully set forth herein.

71. Defendants unlawfully imprisoned and restrained the plaintiff.

72. As a result of the aforementioned conduct, plaintiff DONNELL TAYLOR was falsely arrested in violation of the laws of the State of New York.

AS AND FOR A THIRTEENTH CAUSE OF ACTION
(Malicious Abuse of Process under laws of the State of New York)

~~73. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "72" with the same force and effect as if fully set forth herein.~~

74. Defendants maliciously abused criminal process against plaintiff DONNELL TAYLOR by causing him to be prosecuted for an improper purpose.

75. Defendants caused plaintiff DONNELL TAYLOR to be prosecuted in order to obtain a collateral objective outside the legitimate ends of the legal process, to wit: to cover up their acts of brutality.

AS AND FOR A FOURTEENTH CAUSE OF ACTION
(Malicious Prosecution under the laws of the State of New York)

76. Plaintiff repeats, reiterates and realleges each and every allegation contained in

AS AND FOR AN SEVENTEETH CAUSE OF ACTION
(Negligence under the laws of the State of New York)

84. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "83" with the same force and effect as if fully set forth herein.

85. Plaintiff's injuries herein were caused by the carelessness, recklessness and negligence of the defendant City of New York and its employees and agents, who were on duty and acting in the scope of their employment when they engaged in the wrongful conduct described herein.

AS AND FOR AN EIGHTEENTH CAUSE OF ACTION
(Respondeat Superior liability under the laws of the State of New York)

86. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "85" with the same force and effect as if fully set forth herein.

87. Defendant City of New York is vicariously liable for the acts of its employees and agents who were on duty and acting in the scope of their employment when they engaged in the wrongful conduct described herein.

88. As a result of the foregoing, plaintiff DONNELL TAYLOR is entitled to compensatory damages in amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of their action.

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

-----X
DONNELL TAYLOR,

Plaintiffs,

-against-

CITY OF NEW YORK, ET AL.

Defendants,
-----X

COMPLAINT

LEVENTHAL & KLEIN, LLP
Attorneys for the Plaintiff
45 Main Street, Suite 820
Brooklyn, New York 11201
(718) 722-4100

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

-----X
DONNELL TAYLOR,

Plaintiff,

-against-

CITY OF NEW YORK, ENGELS DELACRUZ, ALEXANDER
ALVAREZ, and JOHN and JANE DOE 1 through 10,
individually and in their official capacities, (the names John and
Jane Doe being fictitious, as the true names are presently unknown),

Defendants,
-----X

AMENDED
COMPLAINT

07 CV 4129 (DAB)

Jury Trial Demanded

Plaintiff DONNELL TAYLOR, by his attorneys, Leventhal & Klein, LLP, complaining
of the defendants, respectfully alleges as follows:

Preliminary Statement

1. ~~Plaintiff brings this action for compensatory damages, punitive damages and~~
attorney's fees pursuant to 42 U.S.C. §§1983 and 1988 for violations of his civil rights, as said
rights are secured by said statutes and the Constitution of the State of New York and the United
States. Plaintiff also asserts supplemental state law claims.

JURISDICTION

2. The action is brought pursuant to 42 U.S.C. §§ 1983 and 1988, and the First,
Fourth and Fourteenth Amendments to the United States Constitution.

3. Jurisdiction is found upon 28 U.S.C. §§1331, 1343 and 1367.

VENUE

4. Venue is properly laid in the Southern District of New York under U.S.C. §

YORK.

12. Each and all of the acts of the defendant alleged to be committed by the defendants while acting in furtherance of their employment by defendant, the City of New York.

Complaint is drafted by Plaintiff's attorney so obviously not all facts are here & skewed.

FACTS

13. On March 11, 2006, at approximately 6:30 p.m., plaintiff DONNELL TAYLOR was lawfully in the vicinity of 7th Avenue and 143rd Street, in the County and State of New York.

14. At the aforesaid time and place, the defendants, members of the New York City Police Department, were in the process of interrogating and arresting the plaintiff's brother. When the plaintiff lawfully asked the officers why they were arresting his brother, he was directed to get up against a wall, and was thereafter roughly taken to the ground by one of the defendants, and felt the defendants punching him. Plaintiff was thereafter detained and arrested for Resisting Arrest and Disorderly Conduct. The charges, which were maliciously issued by the defendants to cover up their acts of brutality and abuse of authority, and were conveyed to the New York County District Attorney's Office for the purpose of initiating a prosecution against the plaintiff. Plaintiff was detained overnight until he was released without bail on March 12, 2006. However, plaintiff was forced to defend the baseless charges until they were ultimately dismissed and sealed on or about November 18, 2006.

15. As a result of the above, plaintiff was taken to Harlem Hospital by the defendants, where he was treated for the injuries inflicted by the defendants.

16. As a result of the foregoing, plaintiff DONNELL TAYLOR sustained, *inter alia*, physical injuries, emotional distress, embarrassment, and humiliation, and deprivation of his constitutional rights.

AS AND FOR A SECOND CAUSE OF ACTION
(Excessive Force under 42 U.S.C. § 1983)

23. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "22" with the same force and effect as if fully set forth herein.

24. The level of force employed by defendants was objectively unreasonable and in violation of plaintiff DONNELL TAYLOR'S constitutional rights.

25. As a result of the aforementioned conduct of defendants, plaintiff DONNELL TAYLOR was subjected to excessive force and sustained physical injuries.

AS AND FOR A THIRD CAUSE OF ACTION
(Failure to Intervene under 42 U.S.C. § 1983)

26. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "25" with the same force and effect as if fully set forth herein.

27. Defendants had an affirmative duty to intervene on behalf of plaintiff DONNELL TAYLOR, whose constitutional rights were being violated in their presence by other officers.

28. The defendants failed to intervene to prevent the unlawful conduct described herein.

29. As a result of the foregoing, plaintiff DONNELL TAYLOR'S liberty was restricted for an extended period of time, he was put in fear of his safety, he was strip searched, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause. Further, plaintiff sustained physical injuries.

AS AND FOR A FOURTH CAUSE OF ACTION
(False Arrest under 42 U.S.C. § 1983)

30. Plaintiff repeats, reiterate and realleges each and every allegation contained in paragraphs numbered "1" through "29" with the same force and effect as if fully set forth herein.

AS AND FOR A SEVENTH CAUSE OF ACTION
(First Amendment Claim under 42 U.S.C. § 1983)

39. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "38" with the same force and effect as if fully set forth herein.

40. The acts of the defendants were in retaliation for plaintiff's exercise of his free speech, and not in response to any unlawful acts of the plaintiff.

41. As a result of the aforementioned conduct of defendants, plaintiff DONNELL TAYLOR's First Amendment Rights were violated.

AS AND FOR AN EIGHTH CAUSE OF ACTION
(Municipal Liability under 42 U.S.C. § 1983)

42. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "41" with the same force and effect as if fully set forth herein.

43. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

44. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York Police Department included, but were not limited to, unlawfully stopping, assaulting and battering, and seizing innocent citizens who question police misconduct, and then committing perjury and/or manufacturing evidence in an effort to convict such individuals. In addition, the City of New York engaged in a policy, custom or practice of inadequate screening, hiring, retaining, training and supervising its employees that was the moving force behind the violation of plaintiff DONNELL TAYLOR'S rights as described herein. As a result of the failure of the City of New York to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant CITY OF NEW YORK has tacitly

process;

C. To receive equal protection under law; and

D. To be free from the use of excessive force and/or the failure to intervene.

51. As a result of the foregoing, plaintiff DONNELL TAYLOR is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury.

Supplemental State Law Claims

52. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "51" with the same force and effect as if fully set forth herein.

53. Within ninety (90) days after the claim herein accrued, plaintiff duly served upon, presented to and filed with the City of New York, a Notice of Claim setting forth all facts and information required under the General Municipal Law 50-e.

54. The City of New York has wholly neglected or refused to make an adjustment or payment thereof and more than thirty (30) days have elapsed since the presentation of such claim as aforesaid.

55. The action was commenced within one (1) year and ninety (90) days after the cause of action herein accrued.

56. Plaintiff has complied with all conditions precedent to maintaining the instant action.

57. This action falls within one or more of the exceptions as outlined in C.P.L.R. 1602.

66. The aforementioned conduct was committed by defendants while acting within the scope of their employment by defendant CITY OF NEW YORK.

67. The aforementioned conduct was committed by defendants while acting in furtherance of their employment by defendant CITY OF NEW YORK.

68. The aforementioned conduct was intentional and for the sole purpose of causing severe emotional distress to plaintiff DONNELL TAYLOR.

69. As a result of the aforementioned conduct, plaintiff DONNELL TAYLOR suffered severe emotional distress, physical and mental injury, together with embarrassment, humiliation, shock, fright, and loss of freedom.

AS AND FOR THE TWELFTH CAUSE OF ACTION
(False Arrest under the laws of the State of New York)

70. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "69" with the same force and effect as if fully set forth herein.

71. Defendants unlawfully imprisoned and restrained the plaintiff.

72. As a result of the aforementioned conduct, plaintiff DONNELL TAYLOR was falsely arrested in violation of the laws of the State of New York.

AS AND FOR A THIRTEENTH CAUSE OF ACTION
(Malicious Abuse of Process under laws of the State of New York)

73. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "72" with the same force and effect as if fully set forth herein.

74. Defendants maliciously abused criminal process against plaintiff DONNELL TAYLOR by causing him to be prosecuted for an improper purpose.

75. Defendants caused plaintiff DONNELL TAYLOR to be prosecuted in order to obtain a collateral objective outside the legitimate ends of the legal process, to wit: to cover up

paragraphs numbered "1" through "81" with the same force and effect as if fully set forth herein.

83. Upon information and belief the defendant City of New York failed to use reasonable care in the training and supervision of the aforesaid defendants who conducted and participated in the arrest, assault and strip search of plaintiff DONNELL TAYLOR.

AS AND FOR AN SEVENTEETH CAUSE OF ACTION
(Negligence under the laws of the State of New York)

84. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "83" with the same force and effect as if fully set forth herein.

85. Plaintiff's injuries herein were caused by the carelessness, recklessness and negligence of the defendant City of New York and its employees and agents, who were on duty and acting in the scope of their employment when they engaged in the wrongful conduct described herein.

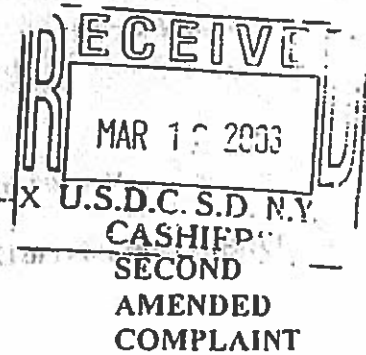
AS AND FOR AN EIGHTEENTH CAUSE OF ACTION
(Respondeat Superior liability under the laws of the State of New York)

86. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "85" with the same force and effect as if fully set forth herein.

87. Defendant City of New York is vicariously liable for the acts of its employees and agents who were on duty and acting in the scope of their employment when they engaged in the wrongful conduct described herein.

88. As a result of the foregoing, plaintiff DONNELL TAYLOR is entitled to compensatory damages in amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of their action.

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK



DONNELL TAYLOR,

Plaintiff,

07 CV 4129 (DAB)

-against-

Jury Trial Demanded

CITY OF NEW YORK, ENGELS DELACRUZ, ALEXANDER
ALVAREZ, MARILYN TRAPANOTTO, DEBORAH
MCDERMOTT, WILFREDO ACIEVEDO, THOMAS
COZART, individually and in their official capacities,

Defendants,

-----X

Plaintiff DONNELL TAYLOR, by his attorneys, Leventhal & Klein, LLP, complaining
of the defendants, respectfully alleges as and for his Second Amended Complaint as follows:

Preliminary Statement

1. Plaintiff brings this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. §§1983 and 1988 for violations of his civil rights, as said rights are secured by said statutes and the Constitution of the State of New York and the United States. Plaintiff also asserts supplemental state law claims.

JURISDICTION

2. The action is brought pursuant to 42 U.S.C. §§ 1983 and 1988, and the First, Fourth and Fourteenth Amendments to the United States Constitution.

3. Jurisdiction is found upon 28 U.S.C. §§1331, 1343 and 1367.

New York.

11. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant CITY OF NEW YORK.

12. Each and all of the acts of the defendant alleged herein were done by said defendants while acting in furtherance of their employment by defendant CITY OF NEW YORK.

FACTS

13. On March 11, 2006, at approximately 6:30 p.m., plaintiff DONNELI TAYLOR was lawfully in the vicinity of 7th Avenue and 143rd Street, in the County and State of New York.

14. At the aforesaid time and place, some of the defendants, members of the New York City Police Department, were in the process of interrogating and arresting the plaintiff's brother. When the plaintiff lawfully asked the officers why they were arresting his brother, he was directed to get up against a wall, and was thereafter roughly taken to the ground by one of the defendants, and felt the defendants punching him. Plaintiff was thereafter detained and arrested for Resisting Arrest and Disorderly Conduct. The charges, which were maliciously issued by the defendants to cover up their acts of brutality and abuse of authority, were conveyed to the New York County District Attorney's Office for prosecution. Plaintiff was detained overnight until he was released on his own recognizance on March 12, 2006. However, plaintiff was forced to defend the baseless charges until they were ultimately dismissed and sealed on or about November 18, 2006. The above-described unlawful conduct occurred in the presence of defendant NYPD officers, who failed to comply with their affirmative duty to intervene to stop fellow police officers from committing abusive and unjustified acts in their presence.

22. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

AS AND FOR A SECOND CAUSE OF ACTION
(Excessive Force under 42 U.S.C. § 1983)

23. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "22" with the same force and effect as if fully set forth herein.

24. The level of force employed by defendants was excessive, objectively unreasonable and otherwise in violation of plaintiff DONNELL TAYLOR'S constitutional rights.

25. As a result of the aforementioned conduct of defendants, plaintiff DONNELL TAYLOR was subjected to excessive force and sustained physical injuries.

AS AND FOR A THIRD CAUSE OF ACTION
(Failure to Intervene under 42 U.S.C. § 1983)

26. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "25" with the same force and effect as if fully set forth herein.

27. Defendants had an affirmative duty to intervene on behalf of plaintiff DONNELL TAYLOR, whose constitutional rights were being violated in their presence by other officers.

28. The defendants failed to intervene to prevent the unlawful conduct described herein.

29. As a result of the foregoing, plaintiff DONNELL TAYLOR'S liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause. Further, plaintiff sustained physical injuries.

York County District Attorney's Office and by otherwise causing plaintiff to be maliciously prosecuted.

38. Upon information and belief, the criminal prosecution was terminated in favor of the accused when it was dismissed and sealed on or about November 18, 2006.

AS AND FOR A SEVENTH CAUSE OF ACTION
(First Amendment Claim under 42 U.S.C. § 1983)

39. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "38" with the same force and effect as if fully set forth herein.

40. The acts of the defendants were in retaliation for plaintiff's exercise of his free speech, and not in response to any unlawful acts of the plaintiff.

41. As a result of the aforementioned conduct of defendants, plaintiff DONNELL TAYLOR's First Amendment Rights were violated.

AS AND FOR AN EIGHTH CAUSE OF ACTION
(Municipal Liability under 42 U.S.C. § 1983)

42. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "41" with the same force and effect as if fully set forth herein.

43. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

44. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York Police Department included, but were not limited to, unlawfully stopping, assaulting and battering, and seizing innocent citizens of minority descent, who question police misconduct, and then committing perjury and/or manufacturing evidence in an effort to convict such individuals in retaliation for the exercise of free speech and the right to question police

rights.

50. All of the foregoing acts by defendants deprived plaintiff DONNELL TAYLOR of federally protected rights, including, but not limited to, the right:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from false arrest, malicious prosecution, and malicious abuse of process;
- C. To receive equal protection under law; and
- D. To be free from the use of excessive force and/or the failure to intervene.

51. As a result of the foregoing, plaintiff DONNELL TAYLOR is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury.

Supplemental State Law Claims

52. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "51" with the same force and effect as if fully set forth herein.

53. Within ninety (90) days after the claim herein accrued, plaintiff duly served upon, presented to and filed with the City of New York, a Notice of Claim setting forth all facts and information required under the General Municipal Law 50-c.

54. The City of New York has wholly neglected or refused to make an adjustment or payment thereof and more than thirty (30) days have elapsed since the presentation of such claim as aforesaid.

55. The action was commenced within one (1) year and ninety (90) days after the cause of action herein accrued.

56. Plaintiff has complied with all conditions precedent to maintaining the instant

65. The aforementioned conduct was extreme and outrageous, and exceeded all reasonable bounds of decency.

66. The aforementioned conduct was committed by defendants while acting within the scope of their employment by defendant CITY OF NEW YORK.

67. The aforementioned conduct was committed by defendants while acting in furtherance of their employment by defendant CITY OF NEW YORK.

68. The aforementioned conduct was intentional and for the sole purpose of causing severe emotional distress to plaintiff DONNELL TAYLOR.

69. As a result of the aforementioned conduct, plaintiff DONNELL TAYLOR suffered severe emotional distress, physical and mental injury, together with embarrassment, humiliation, shock, fright, and loss of freedom.

AS AND FOR THE TWELFTH CAUSE OF ACTION
(False Arrest under the laws of the State of New York)

70. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "69" with the same force and effect as if fully set forth herein.

71. Defendants unlawfully imprisoned and restrained the plaintiff.

72. As a result of the aforementioned conduct, plaintiff DONNELL TAYLOR was falsely arrested in violation of the laws of the State of New York.

AS AND FOR A THIRTEENTH CAUSE OF ACTION
(Malicious Abuse of Process under laws of the State of New York)

73. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "72" with the same force and effect as if fully set forth herein.

74. Defendants maliciously abused criminal process against plaintiff DONNELL TAYLOR by causing him to be prosecuted for an improper purpose.

AS AND FOR A SIXTEENTH CAUSE OF ACTION
(Negligent Training and Supervision under the laws of the State of New York)

82. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "81" with the same force and effect as if fully set forth herein.

83. Upon information and belief the defendant City of New York failed to use reasonable care in the training and supervision of the aforesaid defendants who conducted and participated in the arrest, assault and strip search of plaintiff DONNELL TAYLOR.

AS AND FOR AN SEVENTEETH CAUSE OF ACTION
(Negligence under the laws of the State of New York)

84. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "83" with the same force and effect as if fully set forth herein.

85. Plaintiff's injuries herein were caused by the carelessness, recklessness and negligence of the defendant City of New York and its employees and agents, who were on duty and acting in the scope of their employment when they engaged in the wrongful conduct described herein.

AS AND FOR AN EIGHTEENTH CAUSE OF ACTION
(Respondeat Superior liability under the laws of the State of New York)

86. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "85" with the same force and effect as if fully set forth herein.

87. Defendant City of New York is vicariously liable for the acts of its employees and agents who were on duty and acting in the scope of their employment when they engaged in the wrongful conduct described herein.

88. As a result of the foregoing, plaintiff DONNELL TAYLOR is entitled to compensatory damages in amount to be fixed by a jury, and is further entitled to punitive

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

-----X
DONNELL TAYLOR,

Plaintiff,

07 CV 4129 (DAB)

-against-

CITY OF NEW YORK, ENGELS DELACRUZ, ALEXANDER
ALVAREZ, MARILYN TRAPANOTTO, DEBORAH
MCDERMOTT, WILFREDO ACEVEDO, THOMAS
COZART, and JOHN and JANE DOE 1 through 10,
individually and in their official capacities, (the names John and
Jane Doe being fictitious, as the true names are presently unknown),

Defendants.
-----X

SECOND AMENDED COMPLAINT

LEVENTHAL & KLEIN, LLP
Attorneys for Plaintiff Donnell Taylor
45 Main Street, Suite 230
Brooklyn, New York 11201
(718) 722-4100

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

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DONNELL TAYLOR,

Plaintiff,

-against-

THE CITY OF NEW YORK AND JOHN and JANE DOE
1-10, individually and in their official capacities, (the
names John and Jane Doe being fictitious, as the true
names are presently unknown),

Defendants.
----- x

ANSWER

Jury Trial Demanded

07CV 4129 (DAB)

Defendant City of New York, by its attorney, Michael A. Cardozo, Corporation
Counsel of the City of New York, for its Answer to the Complaint, respectfully alleges, upon
information and belief, as follows:

1. Denies the allegations set forth in paragraph "1" of the Complaint, except
admits that plaintiff purports to bring the action and proceed as stated therein.
2. Denies the allegations set forth in paragraph "2" of the Complaint, except
admits that plaintiff purports to bring the action as stated therein.
3. Denies the allegations set forth in paragraph "3" of the Complaint, except
admits that plaintiff purports to invoke the jurisdiction of this Court as stated therein.
4. Denies the allegations set forth in paragraph "4" of the Complaint, except
admits that plaintiff purports to base venue as stated therein.
5. The allegations set forth in paragraph "5" of the Complaint do not
constitute a factual averment to which a response is required.

16. Denies the allegations set forth in paragraph "16" of the Complaint, except denies knowledge or information sufficient to form a belief as to the truth of the allegations set forth regarding any alleged injuries.

17. In response to the allegations set forth in paragraph "17" of the Complaint, defendant repeats and realleges the responses set forth in paragraphs "1" through "16", inclusive of this answer, as if fully set forth herein.

18. Paragraph "18" of the Complaint sets forth conclusions of law rather than averments of fact and accordingly no response is required.

19. Denies the allegations set forth in paragraph "19" of the Complaint.

20. Paragraph "20" of the Complaint sets forth conclusions of law rather than averments of fact and accordingly no response is required.

21. Denies the allegations set forth in paragraph "21" of the complaint.

22. Denies the allegations set forth in paragraph "22" of the complaint.

23. In response to the allegations set forth in paragraph "23" of the Complaint, defendant repeats and realleges the responses set forth in paragraphs "1" through "22", inclusive of this answer, as if fully set forth herein.

24. Denies the allegations set forth in paragraph "24" of the Complaint.

25. Denies the allegations set forth in paragraph "25" of the Complaint, except denies knowledge or information sufficient to form a belief as to the truth of the allegations set forth regarding physical injuries.

26. In response to the allegations set forth in paragraph "26" of the Complaint, defendant repeats and realleges the responses set forth in paragraphs "1" through "25", inclusive of this answer, as if fully set forth herein.

39. In response to the allegations set forth in paragraph "39" of the Complaint, defendant repeats and realleges the responses set forth in paragraphs "1" through "38", inclusive of this answer, as if fully set forth herein.

40. Denies the allegations set forth in paragraph "40" of the Complaint.

41. Denies the allegations set forth in paragraph "41" of the Complaint.

42. In response to the allegations set forth in paragraph "42" of the Complaint, defendant repeats and realleges the responses set forth in paragraphs "1" through "41", inclusive of this answer, as if fully set forth herein.

43. Denies the allegations set forth in paragraph "43" of the Complaint.

44. Denies the allegations set forth in paragraph "44" of the complaint.

45. Denies the allegations set forth in paragraph "45" of the complaint.

46. Denies the allegations set forth in paragraph "46" of the complaint.

47. Denies the allegations set forth in paragraph "47" of the complaint.

48. Denies the allegations set forth in paragraph "48" of the complaint.

49. Denies the allegations set forth in paragraph "49" of the complaint.

50. Denies the allegations set forth in paragraph "50" of the complaint and all subparts thereto.

51. Denies the allegations set forth in paragraph "51" of the complaint.

52. In response to the allegations set forth in paragraph "52" of the Complaint, defendant repeats and realleges the responses set forth in paragraphs "1" through "51", inclusive of this answer, as if fully set forth herein.

63. Denies the allegations set forth in paragraph "63" the Complaint, except denies knowledge or information sufficient to form a belief as to the truth of the allegations set forth regarding physical and mental pain and injuries.

64. In response to the allegations set forth in paragraph "64" of the Complaint, defendant repeats and realleges the responses set forth in paragraphs "1" through "63", inclusive of this answer, as if fully set forth herein.

65. Denies the allegations set forth in paragraph "65" of the Complaint.

66. Denies the allegations set forth in paragraph "66" of the Complaint.

67. Denies the allegations set forth in paragraph "67" of the Complaint.

68. Denies the allegations set forth in paragraph "68" of the Complaint.

69. Denies the allegations set forth in paragraph "69" the Complaint, except denies knowledge or information sufficient to form a belief as to the truth of the allegations set forth regarding physical and mental pain and injuries.

70. In response to the allegations set forth in paragraph "70" of the Complaint, defendant repeats and realleges the responses set forth in paragraphs "1" through "69", inclusive of this answer, as if fully set forth herein.

71. Denies the allegations set forth in paragraph "71" of the Complaint.

72. Denies the allegations set forth in paragraph "72" of the Complaint.

73. In response to the allegations set forth in paragraph "73" of the Complaint, defendant repeats and realleges the responses set forth in paragraphs "1" through "72", inclusive of this answer, as if fully set forth herein.

74. Denies the allegations set forth in paragraph "74" of the Complaint.

75. Denies the allegations set forth in paragraph "75" of the Complaint.

87. Denies the allegations set forth in paragraph "87" of the Complaint.

88. Denies the allegations set forth in paragraph "88" of the Complaint.

AS AND FOR A FIRST AFFIRMATIVE DEFENSE:

89. At all times relevant to the acts alleged in the Complaint, the duties and functions of defendant's officials entailed the reasonable exercise of proper and lawful discretion. Therefore, the City of New York is entitled to governmental immunity from liability.

AS AND FOR A SECOND AFFIRMATIVE DEFENSE:

90. Any injury alleged to have been sustained by plaintiff resulted from plaintiff's own culpable or negligent conduct or that of a third party and was not the proximate result of any act of the defendant.

AS AND FOR A THIRD AFFIRMATIVE DEFENSE:

91. There was probable cause and/or reasonable suspicion for plaintiff's stop, arrest and/or detention.

AS AND FOR A FOURTH AFFIRMATIVE DEFENSE:

92. Punitive damages cannot be assessed as against the City of New York.

AS AND FOR A FIFTH AFFIRMATIVE DEFENSE

93. The complaint fails to state a claim upon which relief can be granted.

AS AND FOR A SIXTH AFFIRMATIVE DEFENSE

94. At all times relevant to the acts alleged in the complaint, defendant acted reasonably in the proper and lawful exercise of its discretion.

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

DONNELL TAYLOR,

Plaintiff,

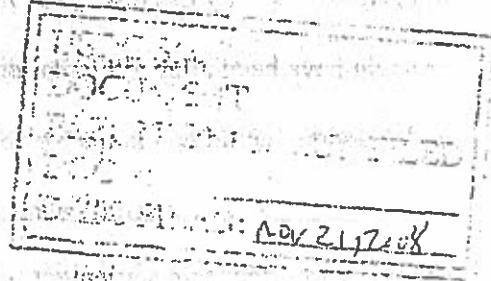
-against-

THE CITY OF NEW YORK, ENGELS DELACRUZ,
ALEXANDER ALVAREZ, MARILYN TRAPANOTTO,
DEBORAH MCDERMOTT, WILFREDO ACEVEDO,
THOMAS COZART, individually and in their official
capacities,

Defendants.

X STIPULATION AND
ORDER OF
SETTLEMENT AND
DISCONTINUANCE

07CV 4129 (DAB)



WHEREAS, plaintiff commenced this action by filing a complaint on or about
May 29, 2007, alleging that defendants violated his constitutional rights; and

WHEREAS, defendants have denied any and all liability arising out of plaintiff's
allegations; and

WHEREAS, the parties now desire to resolve the issues raised in this litigation,
without further proceedings and without admitting any fault or liability;

WHEREAS, plaintiff has authorized his counsel to settle this matter on the terms
set forth below;

NOW, THEREFORE, IT IS HEREBY STIPULATED AND AGREED, by
and between the undersigned, as follows:

1. The above-referenced action is hereby dismissed with prejudice, and
without costs, expenses, or fees in excess of the amount specified in paragraph "2" below.

2. The City of New York hereby agrees to pay plaintiff the total sum of
FORTY THOUSAND DOLLARS (\$40,000.00) in full satisfaction of all claims, including

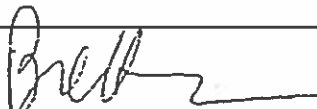
upon by the parties hereto, and no oral agreement entered into at any time nor any written agreement entered into prior to the execution of this Stipulation and Order regarding the subject matter of the instant proceeding shall be deemed to exist, or to bind the parties hereto, or to vary the terms and conditions contained herein.

Dated: New York, New York
November 20, 2008

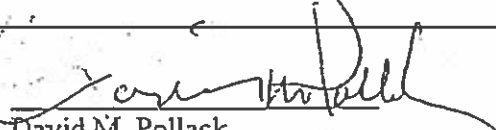
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By:


Brett H. Klein

By:


David M. Pollack
Assistant Corporation Counsel

SO ORDERED:


U.S.D.J. 11/21/08